all books of the institution or of any officer or employé thereof. In anticipation the state dispenser removed certain books from the files, defending his action on the plea that they contained private matter which the committee had no right to inspect. The court ruled that it was the "obvious duty of any officer to keep books, letters and other documents relating to the business of his office and to the manner in which he has discharged or failed to discharge its duties in the place where the public business with which he is charged is conducted, subject to examination by any of the committees appointed by the General Assembly, and upon an application for mandamus to compel him to perform this obvious public duty, it is essential for the court to ascertain the facts and inform itself whether there has been an actual removal of public documents or other public property and a refusal to restore them for examination." In *State* v. *Donovan*, 10 N. Dak. 203, the defendant was a druggist who was required by statute to keep a record of all sales of intoxicating liquors made by him, which should be subject to public inspection at reasonable times. It was held that the privilege against self-crimination was not available to him with respect to the books kept under the law, for they were "public documents, which the defendant was required to keep, not for his private uses, but for the benefit of the public, and for public inspection." On similar grounds in *State* v. *Davis*, 108 Missouri, 666, the court sustained a statute requiring druggists to preserve the prescriptions they compounded and to produce them in court when required. See also *State* v. *Davis*, 69 S. E. Rep. (W. Va.) 639; *People* v. *Coombs*, 158 N. Y. 532; *L. & N. R. R. Co.* v. *Commonwealth*, 51 S. W. Rep. (Ky.) 167; *State* v. *Smith*, 74 Iowa, 580; *State* v. *Cummins*, 76 Iowa, 133; *People* v. *Henwood*, 123 Michigan, 317; *Langdon* v. *People*, 133 Illinois, 382.

The fundamental ground of decision in this class of